Distribution Sheet for Quality Regulations

Division	☒ PH ☒ CH
Product Lifecycle Phase	Product Development ☐ PH Biological Development ☐ PH Chemical & Pharmaceutical Development ☐ CH RD ☐ Manufacturing (Sites) ☐ Commercial Operations Shared Service Centers ☒ Shared Service Center Costa Rica ☐ Shared Service Center Dalian ☐ Shared Service Center Gdansk
Region/ Country*	☐ Global ☐ EU ☐ US ☒ Specific country: South Africa
Materials**	☐ APIs (incl. API starting materials, intermediates) ☒ Non-sterile drug products (incl. bulk and combination products) ☒ Sterile drug products (incl. bulk and combination products) ☒ Biotech products ☐ Cell & Gene Therapy products ☒ Medical devices ☒ Cosmetics ☒ Food supplements (for human use)
Relevance for R&D QM	☐ Affected ☐ Interface

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* *Manufactured in or for region / country*

** *Regulation is distributed to each site that handles the materials selected*

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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Shared Service Center in process steps like complaint entry, initial risk classification, processing to the RQU, and final verification including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Shared Service Center regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in SSCDN”.

2 Abbreviations

AE	Adverse Event
CMO	Contract Manufacturing Operation
CQH	Country Quality Head
CQU	Country Quality Unit
KPI	Key Performance Indicator
OTC products	Over-the-counter products
PSP	Patient Support Program
PTC	Product Technical Complaint
PV	Pharmacovigilance
QINT	Quality International
RQU	Responsible Quality Unit
SSC	Shared Service Center

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3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for South Africa are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Shared Service Center all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in SSCDN”.

3.2 General guidance

The employees of the Shared Service Centers are following the SOP during complaint processing in Dev@Com on behalf of the Country Quality Units.

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3.3 Roles and responsibilities

SSC team	- Enters PTCs, Suspected Counterfeit Incidents and Usability Issues according to defined timelines in a timely manner, entering them into the global complaint database in English language. - Organizes missing information and asks CQU for any support contacting the complainant if not possible/allowed by SSC (e.g. data privacy, non-hosted language). - Performs initial Risk Classification and categorization of complaints after receipt. - Informs the CQU about all initial Risk Category I / II complaints and PTCs where local authorities are involved, about all potential counterfeits and any other cases described in this SOP - Forwards the case to the respective RQU for further assessment - Checks if a complaint sample is needed and starts the process to organize shipping of the sample - Reviews the case for plausibility and closes the complaint case in Dev@Com - Sends Response Letters to complainants, as requested and agreed with the CQU and upload in Dev@Com prior to case closure. - Supports the process for reimbursement management - Forwards all cases that are not PTCs back to the CQU for further processing

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Country Quality Head (CQH) / Country Quality Unit (CQU)	- Is responsible for regular KPI evaluation to get overview of complaint activities at the SSC. - Supports the SSC in organizing missing complaint information - Organizes the complaint sample and sends it to the RQU if requested. - Review and sends (when applicable) out the Response Letters to the complainants as requested and agreed with the SSC. - Ensures that all changes within the country law and regulation are directly notified to the SSC and that the Country Specific SOP is updated. - Ensures that current list of distributed products is updated and contains all products. - Reviews response letters to complainants, as requested and agreed with SSC in this SOP. - Contacts local CMO on request of SSC as RQU to obtain investigation reports from the respective CMO. - Provides support in case of complaint handling questions. - Provides feedback on global signals/trends and respective CAPAs for KPI reports. - Implements and closes CAPAs for global trends and signals. - Accountable for the PTC management activities. - Ensures that adequate processes and/or tools are in place to ensure that local requirements regarding oversight on complaints are fulfilled. - Ensures compliance with reporting requirements to local Health Authority - Informs Global Complaint Manager of divisional QA if new quality issues have been detected - Implements CAPA on country level for local products.

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4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference
4.1.1 General Information Bayer Business Services Costa Rica, SRL (SSC) offices are located at America Free Zone, Heredia, Costa Rica.	

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Description	Assigned Roles & Document Reference
Bayer (Proprietary) Ltd offices are located at 27 Wrench Road Isando 1600 South Africa.	
4.1.2 Contact list CQU/CQH- zaqualityph@bayer.com Pharmacovigilance South Africa - *zapv@bayer.com* South Africa Medical Information - *za-medinfo@bayer.com* South Africa Patient Support Program (IUS)- *za_psp@bayer.com* Betaferon Patient Support Program - *za_bps@bayer.com* Corporate Global Security | Crime Defence - *derrik.norsworthy@bayer.com; gary.johnston@bayer.com, andy.hatley@bayer.com.* DSV Pharmacists - *ZA.HealthcarePharmacists@ZA.DSV.COM* South Africa Legal Department - *roxann.vanrugge@bayer.com* Key Account Head Consumer Health – *dean.carlson@bayer.com* **Remark:** Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint: go/cql.	
4.1.3 Escalation Rules The CQH and the CQH deputy should be notified via e-mail though the CQU address detailed in the contact list about any complaint case referring to at least one of the following situations: - All cases with initial risk category I or II - Suspected Counterfeit Cases and confirmed counterfeit cases are immediately reported with Corporate Global Security / Crime Defense Department in copy. - Any cases involving Health Authorities - Confirmed cases with final risk category I or II. **Remark:** Current name and e-mail address of the CQH and the CQH deputy are found on the QINT SharePoint: go/cql.	SSC
4.1.4 Pharmacovigilance cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the following e-mail address *zapv@bayer.com*, unless the incoming information is received through any PV e-mail address or there is evidence that Pharmacovigilance has already been notified of the case.	SSC
4.1.5 Product Samples - Where a sample is available and required, the SSC initiate the request for the sample and/or photo from the complainant.	SSC

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- The task to send the sample from complainant to RQU is the responsibility of the CQU.
- When the SSC receives information that a sample is available, the SSC informs either a contracted service provider or the CQU directly to arrange the transport of the sample.
- The product sample: if available, relating to a specific PTC must be returned to the original point of purchase for traceability and to ensure that the patient/pharmacy/hospital receives a credit.
- SSC personnel instruct the complainant to return the complaint sample to the pharmacy/hospital/wholesaler from which they obtained the product. SSC informs the Warehouse/Distributor about the complaint sample return and keeps the relevant Warehouse/Distributor personnel and CQU in copy, if an email is sent to the pharmacy (retailer/hospital/small wholesaler etc.).
- Once a sample is returned to the Bayer Wholesaler/Distributor the PTC/PQC form provided by the Wholesaler/Distributor is linked to the original complaint report.
- SSC personnel complete the Warehouse/Distributor PQC form to authorize the approval of credit and the return of the complaint sample, if available. If a sample is available, the SSC Costa Rica informs the CQU of the complaint details (Copy of Warehouse/Distributor PQC form) and corresponding Dev@Com number.
- CQU takes control of sample once it arrives at Bayer Offices for DSV PTCs. The return of samples via DSV is initiated by SSC. Confirmation of sample return (via Seabourne or World Courier) is done by SSC and thereafter arrangements are made by CQU to collect the samples.

Remark: If three documented follow-up attempts for missing information or sample availability is required, they are made with the initial reporter. If there is no physical sample available, or only an empty container the SSC personnel member processing the report may decide to handle the return as a paper claim, where no physical sample will be collected, but a credit will be issued.

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4.1.6 Statement letter

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Acknowledgement Letter when a complaint comes in:

After a complaint is handed in, an immediate acknowledgement of receipt is sent out to the complainant. The content of the acknowledgement is based on templates agreed upon with the CQU**,** see **Annex** 2, 3 and 4**.**

Email acknowledgements are sent by the SSC to the complainant. In case of authority request or potential counterfeit incidents, the acknowledgment is sent out by the CQU. In case of PTC + AE, the letter is sent out with PV and CQU in copy.

Response Letter before closing:

Where a response letter is required, the response letter is created and sent out by the SSC, with CQU in copy. The content of the response letter is based on the outcome of the investigation. Copies of assessment reports directly from Dev@Com are not provided to complainants

In cases of Health Authority request, final risk classification I and II, counterfeit cases or cases where legal action has been taken or there is potential for legal action to be

	taken the CQU is consulted and must approve the response letter. The response letter sent out with the CQU and the local legal department in copy. The SSC uploads the response letter in Dev@Com before closing the case. Local data privacy regulations must be included.	
4.1.7	**RQU Contact list** A table with all available products in the country and the respective RQU contact names needed for the entry into Dev@Com, is available on Share Point: go/ptcops.	SSC
4.1.8	**List of Local Opportunities Products** All Local Opportunities Products are registered in the RQU Contact list (4.1.7).	
4.1.9	**Data Privacy Requirements** All the templates for acknowledgment letters have included the corresponding data privacy statement. Every mail/communication with the consumer that has included the data privacy statement can be attached to Dev@Com unless the customer express dissatisfaction. Cases received from pharmacies and retailers can be attached in Dev@Com since the contact information is not a final consumer. For IUS cases received from PSP source documents can be attached If there are only patient initials on them (no further contact information). PSP source documents which contains contact information cannot be attached in Dev@Com because any data privacy statement was given.	
4.1.10	**Gathering additional information (including obtaining translation)** SSC performs 3 documented attempts in Dev@Com to obtain missing or insufficient relevant information such as sample or photo, batch number, applied serial numbers for suspected counterfeits and the complaint sample required for the complaint investigation unless justified why less or even no attempt was made, e.g. if a sample is declared not to be available. In case non hosted language is involve in the complaint, gather missing information will be performed by the CQU.	SSC CQU
4.1.11	**Reimbursement and Replacement** Whether a reimbursement or replacement for a product is granted, depends on the complainant either being a private person or a hospital, pharmacy or warehouse. This is discussed below (see next two subchapters). For both cases, the following conditions are met: - The provision of a reference number in response to all complaints originating from the third-party Warehouse / Distributor serves as an approval to provide a credit to the complainant. - The reimbursement of IUS reports are handled by the South African IUS Patient Support Program. - The reimbursement process for complaint units relating to Consumer Health products that were purchased from retailers that do not have a clearly established returns process with the third-party Warehouse / Distributor is facilitated by the Consumer Health Key Accounts Department. These cases are forwarded to the CQU and CH Key Accounts Manager upon logging.	SSC

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4.1.12 Exceptions and special cases

The CQU will assist with the translation of any reports that are not in English. The translation request is sent by SSC to CQU.

For complaints processed using an abbreviated workflow, “Lead Investigation Unit” field in Dev@Com should be selected as “LQR Country”.

4.1.13 Others

N/A.

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaints and Suspected Counterfeit Incidents in SSCDN”

6 External References

None

History of changes

Version	Significant changes with respect to previous version	Effective date
1	Initial Release	2021-11-01
2	# Section 4.1.2 Change in the email address for the South Africa Legal Department to *roxann.vanrugge@bayer.com*. # Section 3.3 Update to correct a minor mistake in the SSC roles and responsibilities, specifically in the bullets: “-Sends Response Letters to complainants, as requested and agreed with the CQU and upload in Dev@Com prior to case closure”; and “-Supports the process for reimbursement management”. # Section 4.1.12 Added the Lead Investigation Unit that should be selected for abbreviated workflows.	2022-08-08

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7 Annex 1

Product Complaint Form

Complaint created (date)……
Complaint received (date) ……

Product information:	
Product name	
Batch / lot number	
Dosage form *(cream, tablet, capsule, etc.)*	
Package type/size	
Number of packages	
Sample available?*	Yes/No
*Sample available = please keep for further potential shipment	

Complaint information:	
Complaint description (defect description, is it suspected counterfeit case, etc.)	
Adverse event reported?	Yes/No
Does the complainant expect a response from Bayer?**	
**By requesting a response, the Complainant agrees to his/hers contact data being processed by Bayer for the purpose of providing the answer to the submitted complaint *(the exact sounding to be aligned with legal)*	

Complainants' contact information attention: in the countries with special Data Privacy regulations to be replaced by the complainant code number (to be given by CQU)	
Name and surname	
E-mail address	
Telephone	
Home address	

Sender (if other than Complainant, e.g. a pharmacy)	
Senders' Name (Legal entity)	
Address	
E-Mail address	
Telephone number	

Any additional information	

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8 Annex 2

Email Template Patient/Customer Returns

Dear Mr./Ms./ Mrs._____,

Thank you so much for reporting the below complaint for Product Name - Complaint Description (Batch No) to us.

I have logged the complaint with our manufacturing site for investigation (Reference No.: D@C 20__-_____).

Please take the unit(s) to the Pharmacy that you received the stock from, for a credit/replacement. (ie. Product Quality Complaint – Complaint Description).

Please ask the Pharmacist to contact Bayer on the following e-mail address: your email address so that we can facilitate a credit for the Pharmacy. You are welcome to print this email and take it along to the pharmacy as proof of our communication.

As soon as we have the details from DSV that it has been logged, we can issue a reference number from our side, to DSV, for the credit to be passed.
(PS: Please note the wholesaler must send the information through to DSV).

Have a beautiful day!

Bayer takes the protection of your personal data very seriously and will store your data in accordance with the local applicable laws and internal Bayer policies. Your information will be stored for the purposes of recording your Product Technical Complaint and following up with you, should this be necessary. Your personal information will be stored on a secure database at our company, which will stay with data processors or servers acting on our behalf and responsible to us. Where this data is transferred to Bayer affiliates in other jurisdictions, we will ensure that appropriate protections are in place to maintain the same protection of that data. The data will be stored for as long as we require the information in order to deal with your query or for as long as we are legally permitted. Should you wish to access, correct, verify or delete any of your personal information, please contact za_data_privacy@bayer.com

Add your email Signature

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9 Annex 3

Email Template Dischem Returns

Dear Mr./Ms./ Mrs._____,

Thank you so much for reporting the below complaint for Product Name - Complaint Description (Batch No) to us.

I have logged the complaint with our manufacturing site for investigation (Reference No.: D@C 20__-_____).

Please follow the Dis-Chem credit procedure below for a customer complaint.
Please give the patient a free of charge replacement/credit.
The case will be handled as a paper claim – the empty unit does not need to be uplifted. *(Add this line if no sample is required)*

Have a beautiful day!

Bayer takes the protection of your personal data very seriously and will store your data in accordance with the local applicable laws and internal Bayer policies. Your information will be stored for the purposes of recording your Product Technical Complaint and following up with you, should this be necessary. Your personal information will be stored on a secure database at our company, which will stay with data processors or servers acting on our behalf and responsible to us. Where this data is transferred to Bayer affiliates in other jurisdictions, we will ensure that appropriate protections are in place to maintain the same protection of that data. The data will be stored for as long as we require the information in order to deal with your query or for as long as we are legally permitted. Should you wish to access, correct, verify or delete any of your personal information, please contact za_data_privacy@bayer.com

Add your email Signature

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10 Annex 4

Email Template other Pharmacies / Retailers Returns

Dear Mr./Ms./ Mrs._____,

Thank you so much for reporting the below complaint for Product Name - Complaint Description (Batch No) to us.

I have logged the complaint with our manufacturing site for investigation (Reference No.: D@C 20__-_____).

Please log the complaint with your wholesaler and follow the wholesaler's credit procedure.
The complaint with the batch & invoice number needs to go from you, to the wholesaler, then from the wholesaler to DSV, to arrange for a credit to be passed along. I have included the returns department at DSV to facilitate the process.
The case will be handled as a paper claim – the empty unit does not need to be uplifted. *(Add this line if no sample is required)*

As soon as we have the details from DSV that it has been logged, we can issue a reference number from our side, to DSV, for the credit to be passed.
(PS: Please note the wholesaler must send the information through to DSV).

Have a beautiful day!

Bayer takes the protection of your personal data very seriously and will store your data in accordance with the local applicable laws and internal Bayer policies. Your information will be stored for the purposes of recording your Product Technical Complaint and following up with you, should this be necessary. Your personal information will be stored on a secure database at our company, which will stay with data processors or servers acting on our behalf and responsible to us. Where this data is transferred to Bayer affiliates in other jurisdictions, we will ensure that appropriate protections are in place to maintain the same protection of that data. The data will be stored for as long as we require the information in order to deal with your query or for as long as we are legally permitted. Should you wish to access, correct, verify or delete any of your personal information, please contact za_data_privacy@bayer.com

Add your email Signature

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